

Neetu Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2024 · 2024:AHC:62707-DB · Writ - C No. 5263 of 2024 · **Disposed for objections to provisional assessment under Supply Code**

HEADNOTE

A writ against a section 135 theft demand of Rs. 8,18,423, which was to be treated as a section 3 recovery citation if an OTS scheme was not availed, was disposed of once the licensee stated that only a provisional assessment dated 11 March 2024 had been issued. The petitioner may file objections, and the Assessing Officer must complete the assessment strictly under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Neetu Devi challenged a notice to her late husband, Balveer Singh, from the Executive Engineer, Electricity Distribution Division-I, Kanpur, demanding Rs. 8,18,423 under section 135 of the Electricity Act, 2003 for alleged theft. The notice said that if an OTS scheme was not availed it would be treated as a recovery citation under section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Rules, 1958. The licensee stated that the notice was only an OTS intimation and that only a provisional assessment dated 11 March 2024 had been issued.

HOLDING-UNITS

INTERPLAY · EA2003::135

Section 135 demand while assessment is still provisional

HOLDING

Where the licensee states that a notice demanding payment under section 135 is only an intimation to avail an OTS scheme, and that only a provisional assessment has been issued, the writ is disposed of with liberty to file objections to that notice. The Assessing Officer must then proceed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. The Court neither quashes nor affirms the demand. ¶ 1-3

PRINCIPLE TAGS

s135-demand-writ-disposed-by-representation-and-restoration The section 135 demand writ was disposed of on the licensee's statement that only a provisional assessment notice dated 11.3.2024 had been issued. The petitioner was left at liberty to file objections, and the Assessing Officer was directed to proceed strictly under the U.P. Electricity Supply Code, 2005. No restoration of supply was ordered. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BALVEER SINGH HAD COMMITTED THEFT OF ELECTRICITY UNDER SECTION 135, AND WHETHER THE DEMAND OF RS. 8,18,423 WAS SUSTAINABLE.

Left to the Assessing Officer after objections to the provisional assessment notice dated 11.3.2024. ¶ 1-3

NOT DECIDED — WHETHER THE IMPUGNED COMMUNICATION COULD BE TREATED AS A NOTICE UNDER SECTION 3 OF THE U.P. GOVERNMENT ELECTRICAL UNDERTAKINGS (DUES RECOVERY) RULES, 1958.

¶ 1-2

